

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LARRY A ALLEN,

Petitioner

VS.

ANN L ALLEN,

Respondent

) Case Number: FDI-03-753230

) Hearing Date: May 21, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: JUDGE KATHLEEN DIESMAN

REQUEST FOR ORDER RE: ORDER PETITIONER TO SIGN QDRO

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Larry A. Allen and Respondent Ann L. Allen.
- 2) On 10/25/06, Judgment of Dissolution was entered, which provides for division of Petitioner's pension plan as follows: (a) 50% of Petitioner's pension plan from his employer and WCT pension plan from 3/28/92 to 3/5/03 confirmed to Respondent as her separate property; and (b) Petitioner's pension plans from his employment and union – with the exception of the 50% to Respondent during the time of marriage – confirmed as Petitioner's separate property.
- 3) On 3/10/25, Respondent filed a Request for Joinder of Employee Benefit Plan and Order and related pleadings; therefore, joinder of Petitioner's pension plan was effectuated.
- 4) On 3/17/26, Respondent filed a Request for Order seeking an order for Petitioner to sign a proposed Qualified Domestic Relations Order (QDRO). Respondent asserts that Petitioner's pension has not been divided in accordance with the Judgment. Respondent attached as Exhibit B a proposed QDRO, which Respondent asserts Petitioner refuses to sign.

1 5) On 3/25/26, Respondent filed a Proof of Service indicating Petitioner was served by mail on
2 3/25/26.

3 6) Petitioner did not file a Responsive Declaration.

4 **B. Findings and Order**

5 1) Respondent's unopposed request for an order for Petitioner to sign the proposed QDRO attached
6 as Exhibit B to Respondent's 3/25/26 Request for Order is GRANTED.

7 2) Petitioner shall sign the QDRO no later than 5/28/26 at 5 PM.

8 3) In the event Petitioner fails to sign the QDRO by 5/28/26 at 5 PM, the Court finds good cause to
9 appoint an elisor to sign the QDRO on Petitioner's behalf.

10 4) Specifically, Court Executive Officer Brandon Riley is appointed as elisor.

11 5) Should Respondent need to obtain the signature of Mr. Riley, Respondent shall contact the
12 Administrative Office in Room 205 at 415-551-5737 to schedule an appointment with Mr. Riley
13 to sign the QDRO. Respondent shall bring to the appointment the necessary documents requiring
14 signature and a file-endorsed copy of this order.

15 6) Counsel for Respondent shall prepare the Findings and Order After Hearing.

16 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
17 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
18 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
19 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
20 proposed order after hearing directly to the court. Failure to submit the order after hearing within
21 10 days may allow the other party to prepare a proposed order and submit it to the court in
22 accordance with CA Rules of Court, Rule 5.125(d).